

Amendment No. 1 to HB1090

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1201

House Bill No. 1090*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) The department of correction shall study the issues associated with constructing and operating a reentry facility that would house eligible inmates who are working toward return from incarceration into the community.

(b) The study required pursuant to subsection (a) must include:

(1) A list of criteria to be used to determine the inmates best suited for being housed in the reentry facility, including educational and rehabilitative criteria;

(2) The percentage of inmates who qualify for work, educational, or vocational training programs currently and who are not able to participate in such programs due to unavailability of positions or other prohibitive factors;

(3) The most beneficial time in which an eligible inmate would qualify to be housed at a reentry facility that is no earlier than two (2) years prior to the inmate's release eligibility date;

(4) An evaluation of the issues associated with housing inmates in an environment that serves as a residential reentry facility, allowing eligible inmates to work during the day and return to the facility in the evenings;

(5) An assessment of the resources needed to successfully operate a reentry facility, including, but not limited to, community and law enforcement partnerships;

(6) A survey of other similar facilities in other states that may be in operation and the outcomes and issues associated with operating those facilities;

(7) An implementation strategy for constructing and operating a reentry facility in this state;

(8) The costs associated with constructing and operating a reentry facility, including an evaluation of both a state-funded and a public-private partnership option, and recommended locations for a reentry facility; and

(9) A list and evaluation of any other needs associated with constructing and operating a reentry facility, including, but not limited to, information sharing, intelligence exchange, community engagement, and transitional social services.

(c) All appropriate agencies of state government shall provide assistance to the department for purposes of conducting the study pursuant to this act.

(d) The department shall compile a report of the department's findings and recommendations, which may include potential legislation. The report must be submitted to the speaker of the house of representatives and the speaker of the senate no later than January 1, 2026.

(e) The department shall pay any costs associated with the study required by subsection (a) from the department's existing resources, which may include the department's reserve fund.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.